

(S E R V E D)
(MARCH 17, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 16, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**COMPLAINANTS' MOTION TO PRECLUDE USE OF
UNDISCLOSED INFORMATION AND MATERIALS DENIED**

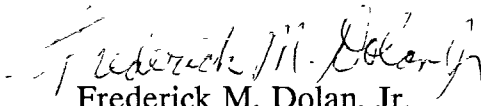
Complainants seek an order precluding Sea-Land Service, Inc. (Sea-Land), from using, in response to complainants' two motions for summary judgment dated February 26, 1992, on jurisdictional or in any other aspect of this proceeding, information and materials which would have been responsive to complainants' discovery requests with respect to jurisdiction but were not produced prior to February 26, 1992. Complainants seek such an order so that they not be surprised by previously undisclosed information and materials.

Complainants contend that they would be severely prejudiced if Sea-Land were to find some unproduced information or materials which it would try to use in responding to the motions on jurisdiction. Complainants seek an order freezing the record in place.

The motion will be denied. After the replies to the motions for summary judgment have been filed and complainants have had an opportunity to examine them, they can determine whether their rights have been abridged or the rules of this proceeding violated and take appropriate action.

It is Ordered:

Complainants' motion, dated February 26, 1992, to preclude use of undisclosed information and material is denied.


Frederick M. Dolan, Jr.
Administrative Law Judge